

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

HELARY DUPIGNY,

Plaintiff,

-against-

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER DANIEL
GILLEN, Shield No. 08106, SERGEANT MARCO
MARTINEZ, LIEUTENANT STEVEN WEISS, and
POLICE OFFICERS JOHN DOES NUMBERS ONE
THROUGH FOUR,

Index No.:

The Basis of Venue is:
Location of Incident

Defendants.

Plaintiff designates Kings
County as the place of trial.

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To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 16, 2017

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
Police Officer Daniel Gillen, Shield No. 08106, 71st Precinct, 421 Empire Blvd,
Brooklyn, NY, 11225
Sergeant Marco Martinez, 71st Precinct, 421 Empire Blvd, Brooklyn, NY 11225
Lieutenant Steven Weiss, 71st Precinct, 421 Empire Blvd, Brooklyn, NY 1122

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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HELARY DUPIGNY,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER DANIEL
GILLEN, Shield No. 08106, SERGEANT MARCO
MARTINEZ, LIEUTENANT STEVEN WEISS, and
POLICE OFFICERS JOHN DOES NUMBERS ONE
THROUGH FOUR,

Defendants.

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff HELARY DUPIGNY, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On May 16, 2014 at approximately 2:00 a.m. plaintiff Helary Dupigny was lawfully present in the vicinity of 601 Parkside Avenue, Brooklyn, New York, when he was subjected to an unlawful stop, question, frisk, search, assault, battery, false arrest/ imprisonment, and the use of excessive force by the defendant New York City police officers. Thereafter, plaintiff was denied the right to due process/ right to a fair trial, maliciously prosecuted and subjected to abuse of process by the defendant police officers. The City of New York and the NYPD's unconstitutional policies, procedures, and practices of circumventing and violating the Fourth Amendment to the United States Constitution by searching the vehicles and all of the property inside the vehicles of individuals who are arrested in the vicinity of their vehicle, without a warrant, probable cause or and legal basis to search the vehicle or its contents and masking these unlawful searches by calling them "Inventory Searches" conducted to itemize all property in the NYPD's possession and to prevent property from going missing, but arresting the vehicle owners when illegal contraband is recovered during the NYPD's unconstitutional "Inventory Searches. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, maliciously prosecuted, abused process, denied plaintiff the right to a fair trial/ due process, unlawfully searched plaintiff's vehicle and the property inside the trunk of his vehicle, assaulted, battered, and used excessive

force against plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Helary Dupigny is a resident of the state of New York.

3. Defendant Police Officer Daniel Gillen, Shield No. 08106, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant Police Officer Daniel Gillen, Shield No. 08106 is and was at all times relevant herein, assigned to the 71st Precinct.

5. Defendant Police Officer Daniel Gillen, Shield No. 08106 is being sued in his individual and official capacity.

6. Defendant Sergeant Marco Martinez is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant Sergeant Marco Martinez is and was at all times relevant herein, assigned to the 71st Precinct.

8. Defendant Sergeant Marco Martinez is being sued in his individual and official capacity.

9. Defendant Lieutenant Steven Weiss is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant Lieutenant Steven Weiss is and was at all times relevant herein, assigned to the 71st Precinct.

11. Defendant Lieutenant Steven Weiss is being sued in his individual and official capacity..

12. New York City Police Officers John Does #1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Police Officers John Does #1-4 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New

York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

17. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

18. By way of background, on May 16, 2014 at approximately 2:00 a.m., plaintiff was beginning a long driving trip from New York to Virginia and was lawfully driving his vehicle in the vicinity of 601 Parkside Avenue, Brooklyn, New York when he decided to locate his headphones before he got onto a highway and started the bulk of the long drive, and plaintiff lawfully pulled the vehicle to the side of the road, exited his vehicle and opened one of the vehicle's rear doors so that he could look in the back seat of the vehicle for his headphones.

19. There were not any pedestrians or other vehicles driving on Parkside Avenue anywhere near the location plaintiff pulled to the side of the road, but plaintiff pulled his vehicle far enough to the side of the road so that other vehicles could drive past his vehicle in the event another vehicle drove by while plaintiff was searching for the headphones.

20. While plaintiff was looking in the back seat of his vehicle for the headphones, the defendant police officers approached plaintiff from behind with their guns drawn toward plaintiff's head and proceeded to unlawfully stop, seize and detain plaintiff without his consent, and without reasonable suspicion, probable cause, or any legal justification.

21. When plaintiff looked up he saw the officers standing there with their weapons pointed at plaintiff.

22. The officers ordered plaintiff to turn the ignition to the car off and to sit back down in the driver's seat of the vehicle and plaintiff complied with the orders given by the officers.

23. At no time prior to stopping plaintiff did the defendant police officers have any objective factual basis to believe plaintiff had committed a crime, was about to commit a crime, or was in the process of committing a crime.

24. At no time did plaintiff commit a crime, nor did the defendant police officers have an objective factual basis to believe he committed a crime..

25. At no time relevant herein was plaintiff in possession of any drugs, weapons, or contraband of any kind on May 16, 2014, nor did the defendant police officers have an objective reason to believe plaintiff possessed drugs, weapons, or contraband of any kind.

26. Plaintiff knew that he had not violated any law, the officers provided him no explanation for why they stopped and seized him, and plaintiff felt as though the officers were harassing him without any legal justification to seize plaintiff.

27. While plaintiff sat in the driver's seat of the vehicle he began to look for his phone because he wanted to call his attorney to get advise about how to deal with the officers and the situation. Plaintiff began looking for his phone.

28. The defendant police officers asked plaintiff what he was doing and plaintiff advised them that he was trying to find his phone so that he could call his attorney.

29. The officers became angry with plaintiff because they viewed the fact that he wanted to speak to an attorney as an attack on them.

30. Then the officers forcefully and with an unreasonable level of force opened the door to plaintiff's vehicle and physically dragged plaintiff out of the vehicle.

31. The defendant police officers unlawfully handcuffed plaintiff and falsely arrested him without legal justification or probable cause.

32. During the course of arresting plaintiff, the defendant police officers used excessive force against plaintiff, causing plaintiff to suffer injuries and contusions all over his body

33. The defendant police officers fabricated their factual and legal allegations against plaintiff that formed their basis for arresting him.

34. The defendant police officers falsely charged plaintiff with Disorderly Conduct, Obstructing Governmental Administration, and Resisting Arrest.

35. The officers transported plaintiff against his will to the 71st Precinct where they unlawfully searched him, fingerprinted him, and detained him in a filthy holding cell for many hours.

36. The officers also unlawfully seized plaintiff's vehicle, instead of leaving the vehicle parked at the location where plaintiff was arrested or allowing a family member of plaintiff's to take the vehicle.

37. There was no legal reason related to plaintiff's arrest or likely prosecution for why the officers needed to seize plaintiff's vehicle.

38. The officers did not possess probable cause, a warrant, or another legally justifiable reason that would permit them to search the vehicle or any of its contents.

39. However, pursuant to the unlawful and unconstitutional policies, practices, and customs of the City of New York and the New York City Police Department, the defendant police officers justified searching plaintiff's vehicle without a warrant or a constitutional basis because they were required by the NYPD to conduct an "Inventory Search" to catalog the property in being held by the NYPD while plaintiff was in their custody.

40. Approximately two hours after plaintiff was arrested, the defendant officers conducted an "Inventory Search" of plaintiff's vehicle which included inspecting the cracks and crevices between the seats, unlocking the trunk of the vehicle and searching its contents, prying a closed/ sealed container in the trunk of plaintiff's car open with a knife and searching the contents of the container.

41. Although the "Inventory Search" was not legal, the defendant officers used the "Inventory Search" as an opportunity to try to locate drugs, weapons or contraband that they could attribute to plaintiff..

42. The defendant police officers falsely claimed they recovered illegal drugs and weapons from sealed containers in the trunk of the vehicle.

43. In addition to lacking any objective facts that would connect the items recovered by the officers from the trunk of the vehicle to plaintiff, the items recovered by the officers were actually legal for plaintiff to possess had there been any evidence they belonged to plaintiff. Thus, under no circumstance should plaintiff been arrested or prosecuted for crimes related to the items recovered from the vehicle during the "Inventory Search."

44. However, without probable cause or legal justification, approximately two hours after they initially arrested plaintiff, the defendant officers added additional and more serious charges to plaintiff's arrest and prosecution, including drug and weapons charges.

45. Based upon the false, misleading, and incomplete information provided by the defendant police officers to the District Attorney's Office the Kings County District Attorney's Office and the defendant police officers initiated and continued a serious criminal prosecution against plaintiff.

46. Plaintiff retained a private criminal defense attorney to represent him in the underlying criminal case and plaintiff paid the attorney \$2500 to represent him.

47. At no time relevant herein did plaintiff commit a crime, nor did the defendant police officers have any reason to believe he committed a crime.

48. The officers knew they lacked probable cause to arrest plaintiff and they added the charges stemming from the items recovered from the Inventory Search so tht they would have bsack up charges in the event anyone ever challenged the validity of the initial OGA, disorderly conduct and resisting arrest charges.

49. At no time relevant herein did the defendant police officers recover any drugs, weapons, or contraband of any kind from plaintiff.

50. Based upon the false, misleading, and incomplete information provided to the District Attorney's Office by the defendant police officers and sworn to by the defendants in the criminal court complaint, defendants initiated a prosecution against plaintiff and legal process against plaintiff was commenced when plaintiff was arraigned in Kings County Criminal Court and was falsely charged with several crimes.

51. On May 16, 2014 after approximately 24 hours in police custody, plaintiff was arraigned in Kings County Criminal Court, falsely charged with several crimes the defendant officers lacked probable cause to allege he committed, and he was released on his own recognizance.

52. Thereafter, plaintiff was forced to appear in Court on numerous occasions before all charges against plaintiff terminated in his favor when he was acquitted on April 29, 2015.

53. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, abuse of process, denial of fair trial, and use of excessive force against plaintiff.

54. There is a policy, practice or custom within the New York City Police Department of circumventing and violating the Fourth Amendment to the United States Constitution by searching the vehicles and all of the property inside the vehicles of individuals who are arrested in the vicinity of their vehicle, without a warrant, probable cause or and legal basis to search the vehicle or its contents and masking these unlawful searches by calling them "Inventory Searches" conducted to itemize all property in the NYPD's possession and to prevent property from going missing, but arresting the vehicle owners when illegal contraband is recovered during the NYPD's unconstitutional "Inventory Searches

55. As a result of defendant City of New York and the New York City Police Department's policy, custom and practice of circumventing and violating the Fourth Amendment to the United States Constitution by searching the vehicles and all of the property inside the vehicles of individuals who are arrested in the vicinity of their vehicle, without a warrant, probable cause or and legal basis to search the vehicle or its contents and masking these unlawful searches by calling them "Inventory Searches" conducted to itemize all property in the NYPD's possession and to prevent property from going missing, but arresting the vehicle owners when illegal contraband is recovered during the NYPD's unconstitutional "Inventory Searches, and the

New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely engage in this misconduct and unlawful behavior, plaintiff's vehicle was unlawfully searched by the NYPD and plaintiff was arrested for and charged with committing crimes he did not commit.

56. Some of the individually named police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, abuse of process and denial of the right to a fair trial against plaintiff

57. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, abuse of process, denial of a fair trial, and the use of excessive force against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

58. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned, maliciously prosecuted, subjected to abuse of process and denied the right to a fair trial and right to due process without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

60. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

61. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff

and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

62. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

63. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

64. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

65. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.

66. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

67. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

68. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

69. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

70. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

71. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 70 with the same force and effect as if more fully set forth at length herein.

72. The illegal approach, pursuit, stop and search of plaintiff's pockets, employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

73. Defendants lacked probable cause to search plaintiff.

74. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

75. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

76. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

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FIFTH CAUSE OF ACTION

Malicious Prosecution

77. Plaintiff repeats and realleges paragraphs 1 through 76 as if fully set forth herein.

78. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

79. Defendants commenced and continued a criminal proceeding against plaintiff.

80. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

81. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

82. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

83. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Denial of Right to Fair Trial

84. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 83 with the same force and effect as if fully set forth herein.

85. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

86. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

87. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

88. In withholding/creating false evidence against plaintiff Helary Dupigny, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

89. As a result of the foregoing, plaintiff Helary Dupigny, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

90. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Malicious Abuse of Process

91. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 90 with the same force and effect as if fully set forth herein.

92. Defendants issued legal process to place plaintiff Helary Dupigny under arrest.

93. Defendants arrested plaintiff Helary Dupigny in order to obtain a collateral objective outside the legitimate ends of the legal process.

94. Defendants acted with intent to do harm to plaintiff Bernard Miller, without excuse or justification.

95. As a result of the foregoing, plaintiff Helary Dupigny sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

96. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

EIGHTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

97. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 96 with the same force and effect as if more fully set forth at length herein.

98. The use of excessive force by defendants by throwing plaintiff to the ground and dragging him from his car was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

99. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

NINTH CAUSE OF ACTION

Assault

100. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 99 with the same force and effect as if more fully set forth at length herein.

101. Defendants, their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff.

102. Defendants were at all times an agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

TENTH CAUSE OF ACTION**Battery**

103. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 101 with the same force and effect as if more fully set forth at length herein.

104. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

105. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

ELEVENTH CAUSE OF ACTION**Failure to Intervene**

106. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 105 with the same force and effect as if more fully set forth at length herein.

107. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

108. Defendants failed to intervene to prevent the unlawful conduct described herein.

109. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

110. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

TWELVTH CAUSE OF ACTION**Municipal Liability under 42 U.S.C. § 1983**

111. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 110 with the same force and effect as if more fully set forth at length herein.

112. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

113. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to, circumventing and violating the Fourth Amendment to the United States Constitution by searching the vehicles and all of the property inside the vehicles of individuals who are arrested in the vicinity of their vehicle, without a warrant, probable cause or and legal basis to search the vehicle or its contents and masking these unlawful searches by calling them "Inventory Searches" conducted to itemize all property in the NYPD's possession and to prevent property from going missing, but arresting the vehicle owners when illegal contraband is recovered during the NYPD's unconstitutional "Inventory Searches," illegally stopping, questioning, searching, and arresting individuals without a specific, articulable factual basis supporting reasonable suspicion and/or probable cause that plaintiff committed a crime and fabricating allegations against an individual to justify the amount of force used during an arrest, as well as inadequate screening, hiring, retaining, training, and supervising its employees with respect to these issues.

114. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

115. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

116. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

117. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully stopped, questioned, searched and arrested.

118. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

119. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

WHEREFORE, plaintiff Helary Dupigny demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
May 16, 2017

/s/

By:

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
May 16, 2017

/s/

STUART E. JACOBS